

Yadu Nath Parashar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 21 January 2019 · Writ-C No. 1770 of 2019 (All.) · Writ-C No. 1770 of 2019 · **Writ disposed; Executive Engineer to hear and decide the Clause 8.1(b) representation in accordance with law; recovery on the 18.01.2016 provisional assessment kept in abeyance pending that final order; merits not decided.**

HEADNOTE

A writ to quash recovery founded on a provisional assessment is disposed by directing the Executive Engineer to hear the consumer and decide the Clause 8.1(b) representation in accordance with law within a fixed time. Subject to the consumer appearing with that representation, recovery on the provisional assessment remains in abeyance until the Engineer's final order. The High Court does not adjudicate the assessment on merits.

FACTUAL SUMMARY

Yadu Nath Parashar, a consumer, filed a writ seeking quashing of recovery of Rs 1,27,044 initiated on a provisional assessment dated 18 January 2016. He said he had preferred a representation under Clause 8.1(b) of the U.P. Electricity Supply Code, 2005 to the Executive Engineer, Rural Vidhyut Vitaran Corporation Ltd., Mathura Cantt., but the copy filed in the writ bore no receiving. Counsel for the petitioner, the licensee (respondent no. 4), and the State were heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1(b)

representation against provisional assessment

HOLDING

Where recovery is founded on a provisional assessment and the consumer asserts a Clause 8.1(b) representation before the Executive Engineer, the writ court may dispose of the petition by directing that Engineer to give a personal hearing and decide the representation in accordance with law within a fixed time; recovery on the provisional assessment remains in abeyance pending that final order, without the Court deciding merits. ¶ 5-6

PRINCIPLE TAGS

no-recovery-without-final-assessment-clause-8.1(b) Recovery in pursuance of the 18.01.2016 provisional assessment was kept in abeyance, and made subject to the Executive Engineer's final order on the Clause 8.1(b) representation. ¶ 6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PROVISIONAL ASSESSMENT AND THE RECOVERY OF RS 1,27,044

The Court expressly stated it has not adjudicated the petitioner's claim on merit. ¶ 7